

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00041-CV

IN THE MATTER OF R.K., A JUVENILE

On Appeal from the 474th District Court
McLennan County, Texas
Trial Court No. 2023-172-J

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice Rambin

MEMORANDUM OPINION

R.K.[1] appeals a McClennan County juvenile court's order transferring him from the Texas Juvenile Justice Department (TJJD) to the Texas Department of Criminal Justice, Correctional Institutions Division (TDCJ), to serve the remainder of his seventeen-year determinate sentence for aggravated assault with a deadly weapon.[2] On appeal, R.K. asserts that the juvenile court abused its discretion when it transferred him to the TDCJ because the record does not support transfer under any of the statutory factors. Because we conclude the juvenile court did not abuse its discretion in ordering the transfer, we affirm the juvenile court's order.

I. Background

In November 2023, the State filed a petition alleging that R.K., who was sixteen at the time, engaged in delinquent conduct in the form of aggravated assault with a deadly weapon. R.K. entered into a juvenile plea agreement with an open plea of true. After an adjudication hearing, the juvenile court declared R.K. to be a juvenile who had engaged in delinquent conduct. After a disposition hearing, and while R.K. was still sixteen years of age, the juvenile court sentenced R.K. to a seventeen-year determinate sentence.

In February 2026, shortly before two years had elapsed since R.K. was sentenced, and upon the request for a hearing by the TJJD, the State requested that the juvenile court consider transferring R.K. from the TJJD to the TDCJ for the remainder of his determinate sentence. R.K.

[1]We use initials to protect the juvenile's identity. *See* TEX. R. APP. P. 9.8.

[2]This appeal was transferred to this Court from the Tenth Court of Appeals pursuant to a Texas Supreme Court docket equalization order. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.). Accordingly, we apply the precedent of the Tenth Court of Appeals in deciding this case to the extent that it conflicts with our own. *See* TEX. R. APP. P. 41.3.

was eighteen years old at the time. The juvenile court conducted a transfer hearing pursuant to Section 54.11 of the Texas Family Code. *See* TEX. FAM. CODE ANN. § 54.11. After the hearing, by order dated March 5, 2026, the juvenile court ordered R.K. to be transferred to the TDCJ to serve the remainder of his seventeen-year determinate sentence.

R.K. appeals the transfer order.

II. The Juvenile Court Did Not Abuse its Discretion in Ordering Transfer

In his sole issue, R.K. argues that the juvenile court abused its discretion by transferring him to the TDCJ to serve the remainder of his determinate sentence.

A. Applicable Law and Standard of Review

> The [TJJD] may refer a youth to the juvenile court for transfer to the [TDCJ] if the youth is between [sixteen] and [nineteen] years old, is serving a determinate sentence, and has not completed his sentence and if the youth's conduct "indicates that the welfare of the community requires the transfer."

In re T.J., No. 02-24-00530-CV, 2025 WL 1840474, at *1 (Tex. App.—Fort Worth July 3, 2025, pet. denied) (mem. op.) (quoting TEX. HUM. RES. CODE ANN. § 244.014(a)); *see In re P.S.*, No. 10-24-00198-CV, 2025 WL 1766129, at *1 (Tex. App.—Waco June 26, 2025, no pet.) (mem. op.). "Upon such referral, the juvenile court must conduct a hearing, TEX. FAM. CODE ANN. § 54.11(a), and after the hearing, the juvenile court must either (1) order him returned to the [TJJD] or (2) transfer him to the [TDCJ] to complete his sentence, *see id.*" *In re T.J.*, 2025 WL 1840474, at *1 (citations omitted); *see In re P.S.*, 2025 WL 1766129, at *1.

> When deciding whether to transfer a youth to the [TDCJ], the juvenile court may consider several factors, including
>
> - the experiences and character of the person before and after commitment to the [TJJD];

- the nature of the penal offense that the person was found to have committed and the manner in which the offense was committed;
- the abilities of the person to contribute to society;
- the protection of the victim of the offense or any member of the victim's family;
- the recommendations of the youth commission and the prosecuting attorney;
- the best interests of the person; and
- any other factor relevant to the issue to be decided.

In re T.J., 2025 WL 1840474, at *1 (citing TEX. FAM. CODE ANN. § 54.11(k)); *In re P.S.*, 2025 WL 1766129, at *1. "The State is not required to present evidence of each factor, and the juvenile court is not required to consider all the listed factors and may assign different weights to those factors that it does consider." *In re T.J.*, 2025 WL 1840474, at *1; *see In re P.S.*, 2025 WL 1766129, at *1.

"We review a juvenile court's decision to transfer a child to the [TDCJ] for an abuse of discretion." *In re T.J.*, 2025 WL 1840474, at *1; *In re P.S.*, 2025 WL 1766129, at *1. "Generally, a court abuses its discretion if it reaches a decision so arbitrary and unreasonable that it amounts to a clear and prejudicial error of law." *In re T.J.*, 2025 WL 1840474, at *1; *see In re P.S.*, 2025 WL 1766129, at *1. "When deciding whether an abuse of discretion occurred, appellate courts review the entire record to determine if the juvenile court acted without reference to any guiding rules or principles." *In re T.J.*, 2025 WL 1840474, at *1; *see In re P.S.*, 2025 WL 1766129, at *1. Merely because an appellate court might rule differently than the juvenile court in a similar circumstance, or "the [juvenile] court base[d] its decision on conflicting evidence," does not demonstrate an abuse of discretion. *In re A.D.*, 287 S.W.3d 356, 366 (Tex. App.—Texarkana 2009, pet. denied). "If some evidence supports the juvenile court's

decision, it has not abused its discretion." *In re T.J.*, 2025 WL 1840474, at *1; *see In re P.S.*, 2025 WL 1766129, at *1. "Stated differently, a [juvenile] court abuses its discretion when it acts arbitrarily or unreasonably or when it rules based on factual assertions not supported by the record." *In re T.J.*, 2025 WL 1840474, at *1.

"The juvenile court—as the factfinder at the transfer hearing—is the sole judge of witness credibility and may choose to believe or disbelieve all or only portions of a witness's testimony." *Id.*

"Because a ruling must be supported by the record, the sufficiency of the evidence is a component of an abuse-of-discretion review." *Id.* at *2. "When considering a legal sufficiency challenge, we review the evidence in the light most favorable to the finding and indulge every reasonable inference that supports it." *Id.*

B. Analysis

Dr. Kyah Gorin Paiva performed a psychological evaluation of R.K. in October 2025. Paiva stated that R.K. exhibited "no evidence of a psychotic thought process." Paiva said that R.K. admitted a "history of low frustration tolerance," although he reported stopping that because he was implementing coping skills from dialectical behavior therapy. Paiva's evaluation noted that R.K. had been removed from group therapy due to fighting but also included R.K.'s report that he expected to learn anger management through the Phoenix Program. Paiva reported that R.K. completed trauma counseling, learning that not everyone is against him, and reported improvement in anger management through the Phoenix Program. Paiva's evaluation summary recognized that R.K.'s time in the TJJD "was one of the first times he was responsible for his

own actions and held accountable." R.K. had trouble conforming to the rules and "continued to engage in his learned lifestyle of physical altercations," despite consistent engagement with case management staff, programming, interventions, and reminders of consequences. Paiva noted that R.K. had engaged in substance use programming but had not yet begun scheduled capital offender programming due to his behavior problems. Paiva stated R.K. recognized that his behavior problems "stemmed from poor frustration tolerance and a destructive attitude." Paiva described R.K.'s connection with a staff member who helped him change his attitude and perspective and relayed that R.K. expressed a "new hope for the future" with determination to "maintain a more positive demeanor."

The TJJD masterfile and security file for R.K. indicated that he had a prior delinquent history including an "[i]nformal [a]djustment" for assault causing bodily injury when he was fifteen years old and a referral for unlawful carrying of a weapon when he was fourteen, though that referral was "[r]efused/[d]ismissed."

Alanna Bennett, a TJJD/TDCJ court liaison who submitted R.K.'s masterfile and security file to the juvenile court, testified at the transfer hearing. Bennett testified that during R.K.'s time at the TJJD, he increased his credits, placing him in the tenth grade, and he was participating in a ten-hour Occupational Safety and Health Administration (OSHA) vocational program, though he had not yet earned any vocational certifications. The masterfile indicated that R.K.'s reading and math abilities were on a second-grade level, and he was "receiving special education services."

Bennett testified that during the twenty months R.K. was at the TJJD, he had ninety-four recorded-behavioral incidents. Bennett stated that most of those were minor rule violations,[3] but sixteen of them required admission to a security-based unit that the masterfile indicated was separate from the general population. R.K. had ten due-process hearings, according to Bennett, the result of which, per the masterfile, was fourteen major rule violations proven true.[4] Bennett testified that six of R.K.'s violations were of a violent nature.

Bennett said that R.K.'s behavior caused him to be placed in the Phoenix Program, which, according to the masterfile, is "the most restrictive treatment program in [the] TJJD, . . . designed for youth who engage in aggressive behaviors and who do not respond to standard behavioral interventions such as counseling, loss of privileges, skill development groups, redirect programs, or other individualized behavior management plans." According to the masterfile, R.K. advanced to the Phoenix maintenance program after only a month, but three weeks later he was demoted due to behavior. R.K. completed the Phoenix Program after approximately six months and, per Bennett, returned to regular programming.

The masterfile indicated that R.K. was placed on an egregious behavior protocol (EBP) on six occasions during his time at the TJJD. "EBP is a Safety Plan for youth involved in extremely unsafe behaviors such as assault, property damage, or suicidal actions."

[3]R.K.'s minor rule violations included, among other things, disruption of scheduled activities, refusal to follow instructions, rule violations, refusal to participate in activities, and horseplay.

[4]R.K.'s major rule violations included, among other things, "[c]hunking [b]odily [f]luids," no-injury fighting and assault, vandalism, tampering with safety equipment, fighting, and assault of staff with bodily injury, and fleeing apprehension.

Bennett testified that R.K. was still participating in dialectical behavior therapy at the time of the hearing, and he had completed substance-use services. Bennett stated that the discharge notes from substance-use services indicated that "he made limited progress in that program."

Bennett testified that R.K. would be a danger to the public if he were released on parole. Bennett stated that the TJJD recommended that R.K. be transferred to the TDCJ to complete his sentence.

At the conclusion of Bennett's testimony, R.K. asked to speak. He indicated that he had gotten his "NCCER."[5] R.K. contested one of the major rule violations, stating that the write-up was on the wrong person. R.K. stated that he was attending "group," and he added that he had not received any write-up in the preceding two or three months.

The TJJD concluded in the masterfile recommendation that R.K. "ha[d] been unable to learn, internalize, and demonstrate the skills necessary for successful reintegration." As a result, R.K. was "a distraction to other youth who [we]re attempting to participate meaningfully in rehabilitation programming."

The State also recommended that R.K. be transferred to the TDCJ because he had not been successfully rehabilitated and would remain a danger to the community if he were released.

At the conclusion of the hearing, the juvenile court granted the TJJD's request and transferred R.K. to the TDCJ.

[5]NCCER is undefined in the record.

R.K. asserts that considerations regarding every one of the statutory factors undermine the juvenile court's transfer decision. *See* TEX. FAM. CODE ANN. § 54.11(k). He points to his difficult experiences before commitment compared to behavioral growth and rehabilitation after commitment and comparable increase in his character, but based on the evidence cited above, the juvenile court could have determined that R.K.'s experiences and character overall continued on a downward trajectory. R.K. complains that the manner of commission of the underlying offense is legally unsupported because the offense report or other primary documentation of the offense was not included in the record, but we do not find any objection to record evidence of the underlying offense that was made during the hearing. R.K. argues that the record demonstrates that he was developing the skills necessary to become a productive citizen, but the record also demonstrates that he had not been able to complete certain programs due to his behavior.

Ultimately, "the juvenile court is not required to consider all the listed factors and may assign different weights to those factors that it does consider." *In re T.J.*, 2025 WL 1840474, at *1; *see In re P.S.*, 2025 WL 1766129, at *1. Among the things the juvenile court could consider are the nature of the offense leading to the determinate sentence and the manner in which that offense was committed. *In re T.J.*, 2025 WL 1840474, at *1; *In re P.S.*, 2025 WL 1766129, at *1. R.K. committed the offense of assault with a deadly weapon by watching the victim playing basketball, running up to him, and shooting him in the neck at close range with a firearm.

Because there is some evidence to support the juvenile court's decision to transfer R.K. to the TDCJ, we hold there was no abuse of discretion. *See In re T.J.*, 2025 WL 1840474, at *1; *In re P.S.*, 2025 WL 1766129, at *1.

We overrule R.K.'s sole issue.

III. Conclusion

We affirm the juvenile court's order transferring R.K. to the TDCJ for the remainder of his seventeen-year determinate sentence.

Jeff Rambin
Justice

Date Submitted: September 17, 2026
Date Decided: October 30, 2026